

Court No. - 3

Case :- WRIT - C No. - 16817 of 2017

Petitioner :- Obedue Rahaman Khan

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Divakar Rai Sharma, Bidhan Chandra Rai

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Krishna Murari, J.

Hon'ble Ravindra Nath Kakkar, J.

Heard Sri Bidhan Chandra Rai, learned counsel for the petitioner and Sri M. D. Shukla, who has accepted notice on behalf of respondents.

Petitioner has approached this Court challenging the demand-cum-disconnection notice dated 21/23.02.2017 demanding a sum of Rs.3,60,017/- towards outstanding arrears for consumption of electrical energy. A perusal of the demand notice goes to show that outstanding arrears are for the period March, 2014 to January, 2017.

Learned counsel for the petitioner contends that regularly monthly bills towards this period as and when raised have been duly deposited by the petitioner. Referring to the copy of the bills filed as Annexure '1' to the writ petition, it is submitted that a perusal of the same will go to reflect that there has been no arrears of any kind, whatsoever, in the bills. It is further submitted that demand of arrears has been issued to the petitioner on the ground that during this period, bills were raised on the assessed units and thus, the amount was being claimed prepared/built on the basis of assessed units.

It is submitted that under clause 6.2 of the U. P. Electricity Supply Code 2005 in case licensee is not able to read meter, provisional bill can be issued based on average consumption of three previous billing cycles. It is further provided that licensee shall ensure that such provisional billing does not extend to more than two billing cycles at a stretch. It is submitted that demand being raised from the petitioner on the basis of assessed units for a period of more than three years is patently illegal and against the provisions of the Electricity Code. It is also submitted that under threat in order to avoid disconnection, the petitioner has already deposited Rs.1.00 lac.

In exercise of powers conferred by Section 181 read with sub-

section (5) to (8) of Section 42 of the Electricity Act, 2003, U. P. Electricity Regulatory Commission (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulation, 2007 have been framed whereunder Consumer Grievance Redressal Forum has been established which provides a detail procedure for entertaining and disposal of complaints. Regulation further provides representation before the Electricity Ombudsman by any consumer aggrieved by the order made by the Forum or where the Forum has failed to redress the grievance likewise licensee also if aggrieved by the order of the Forum can approach to the Electricity Ombudsman. Regulation contained a detail procedure with respect to the decision by the Electricity Ombudsman on the representation.

The issue being raised in this petition involves adjudication into various disputed question of facts which can more effectively be gone into by the Forum constituted under the Regulations 2007.

In such circumstances, we feel it appropriate to dispose of the writ petition by giving liberty to the petitioner to approach the Consumer Grievance Redressal Forum constituted under Regulation 2007 by making a proper complaint in the prescribed form within a period of three weeks from today along with certified copy of the order with direction to the Consumer Grievance Redressal Forum that in case any such complaint is made by the petitioner, the same shall be considered and disposed of in accordance with the procedure prescribed expeditiously, preferably, within a period of three months from the date of making of the complaint by means of a reasoned and speaking order after notice and opportunity of hearing to all concern.

For a period of three months from today or till disposal of complaint by the Forum, whichever is earlier, recovery proceedings against the petitioner in pursuance of the impugned demand-cum-disconnection notice dated 21/23.02.2017 shall remain in abeyance.

Writ petition stands disposed of finally.

Order Date :- 24.4.2017

Dcs